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COMPLAINANTS

See Appendix 1

SUPERVISION SUBJECT

Granit Bostad Beritsholm AB

Decision following supervision according to the
Data Protection Regulation – Granit
Bostad Beritsholm AB's
video surveillance

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Data Protection Authority

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1. Decision of the Data Protection Authority

The Data Protection Authority finds that Granit Bostad Beritsholm AB (556529–2215) during the period from November 1, 2022, to December 11, 2024, has processed personal data in violation of Article 6.1 and Article 13 of the Data Protection Regulation¹ by conducting video surveillance without legal basis in the company's property at Limhamnsvägen 22a in Malmö. Granit Bostad Beritsholm AB also fails to meet the requirement to inform the data subjects regarding the video surveillance.

Administrative Sanction Fee

IMY decides, based on Articles 58.2 and 83 of the Data Protection Regulation, that Granit Bostad Beritsholm AB shall pay an administrative sanction fee of 200,000 (two hundred thousand) kronor for the above-mentioned violations of Articles 6.1 and 13 of the Data Protection Regulation.

Order

The Data Protection Authority orders Granit Bostad Beritsholm AB pursuant to Article 58.2 d of the Data Protection Regulation to take measures no later than four weeks after this decision has become final to ensure that

1. the company ceases video surveillance of all areas in the property except for the garage.
2. there is information on the video surveillance signs regarding the company's identity and contact details for the company, in the form of an email address or phone number.

2. Account of the supervisory matter

2.1 Background

IMY has initiated supervision against Granit Bostad Beritsholm AB (the company) in order to investigate a

complaint that the company conducts unauthorized video surveillance in a multi-family building at Limhamnsvägen 22a in Malmö and deficiencies in its obligation to inform.

2.2 What has emerged in the case

The complainant has stated the following. The complainant lives in the rental property at Limhamnsvägen 22a in Malmö where extensive video surveillance is conducted. There are cameras at three main entrances, at elevators, and at apartment doors on the ground floor, as well as several cameras in the basement corridor adjacent to the entrance to storage, laundry room, and sauna.

There are also several cameras in the garage, bicycle storage, waste room, recycling room, and indoors at the entrance at the back of the property. The complainant has contacted the landlord regarding the extent of the video surveillance and the lack of information. There is no physical information on site, or otherwise, that visitors and tenants can access. The complainant believes that there should be additional information regarding the processing of personal data for the tenants, such as logging of the use of tags for

¹ Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

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access. The area where the property is located is generally very quiet without further issues; therefore, the extent of the camera surveillance should be conducted in a manner that minimizes recording in relation to the problems. In December 2022, the complainant received a response from the landlord stating that they would review the information needs regarding the camera surveillance. The complainant has not received any concrete information about measures and therefore does not feel

secure that personal data collected through camera surveillance is processed correctly and securely and in accordance with the General Data Protection Regulation.

The company has stated the following. In connection with the company taking over the property on November 1, 2022, they also took over the operation of the camera surveillance system. It is unknown when the surveillance began; a comprehensive system overhaul occurred in 2013. Historically, the area has had problems with incidents such as bicycle thefts, attempted break-ins, storage break-ins, car break-ins, vandalism, and graffiti in common areas. Most incidents have been successfully investigated.

The company conducts camera surveillance at Limhamnsvägen 22a in Malmö and is the data controller for the processing of personal data. The surveillance is conducted with 18 cameras installed in garages, basements, storage rooms, operations, laundry rooms, and waste rooms. The cameras are directed at garages, the basement entrance near the gym, bicycle storage, the heating plant, outside offices, corridors leading to the laundry room and garage, stairwells A-C, the basement in stairwell C, storage rooms, and waste rooms. Surveillance occurs around the clock since incidents and crimes happen at all hours of the day, on weekdays and weekends. Recording takes place upon motion detection with all cameras. There is no real-time monitoring and no audio recording. Break-ins and vandalism have occurred at varying times of the day, hence the choice of time for surveillance. Image material is stored for 14 days due to the fact that there is only one manager and the office does not have fixed staffing hours. It may also take time to detect an incident. Three individuals have access to the recorded image material.

The purpose of the surveillance is to prevent and deter crime, create a safe living environment, document evidence in the event of incidents, and prevent significant costs due to extensive mis-sorting and nuisances caused by pests. Furthermore, the camera surveillance is conducted for deterrent purposes. The cameras are appreciated by the tenants and have a deterrent function regarding break-ins and fraud attempts. The company has generally received a positive impression from the residents regarding the camera surveillance.

The company has submitted, among other things, a documented balancing of interests, a drawing showing where the cameras are installed, screenshots from all cameras, copies of older signs and new signs, a map, the corporate structure of the company, a compilation of incidents and police reports obtained from the police, and a copy of the privacy policy.

2.3 Scope of IMY's review in the matter

IMY's review in the matter is limited to the questions of whether the processing of personal data that the camera surveillance entails, since November 1, 2022, has had a legal basis according to the General Data Protection Regulation and whether the company has fulfilled the requirement for information according to Section 15 of the Camera Surveillance Act (2018:1200) and the obligation to provide information according to Article 13 of the General Data Protection Regulation. IMY's review in this supervisory matter does not cover whether the company's camera surveillance is conducted in accordance with other applicable provisions of the General Data Protection Regulation.

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3. Justification of the Decision

3.1 Which Legislation Applies to the Current Video Surveillance?

Video surveillance typically involves the processing of personal data. The extent to which video surveillance is permitted is regulated by the General Data Protection Regulation (GDPR) and the Camera Surveillance Act.

3.1.1 General Data Protection Regulation

According to Article 2.1 of the GDPR, the regulation applies to the processing of personal data that is wholly or partly carried out by automated means. Article 4.1 of the GDPR states that any information relating to an identified or identifiable natural person is considered personal data. According to Article 4.2, processing refers to any operation or combination of operations performed on personal data, such

as collection, recording, storage, reading, and deletion.

If a surveillance camera films an identifiable person, or any other personal data, processing of personal data occurs, and the rules of the GDPR must be followed. IMY notes that the company's surveillance cameras film identifiable individuals and that the provisions of the GDPR thus apply regarding the current processing of personal data.

The data controller must identify the legal basis in Article 6 of the GDPR before initiating video surveillance and is responsible—both towards the data subjects and in relation to the supervisory authority—for ensuring compliance with the principles of personal data processing in Article 5 of the GDPR.

The principle of accountability in Article 5.2 of the GDPR means that the data controller must be able to demonstrate compliance with Article 5.1, which implies that the application of the GDPR often needs to be documented.

3.1.2 Camera Surveillance Act

The Camera Surveillance Act (2018:1200) is a supplementary law in relation to the GDPR. Section 3, paragraph 1 of the Camera Surveillance Act states that video surveillance refers to a television camera, another optical-electronic instrument, or comparable equipment that, without being operated on-site, is used in such a way as to involve permanent or regularly repeated monitoring of individuals. The current video surveillance is not operated on-site and involves permanent monitoring of residents and other visitors in the property. IMY assesses that the Camera Surveillance Act is also applicable to the current surveillance.

3.2 Is the Company the Data Controller?

According to Article 4.7 of the GDPR, the data controller is the natural or legal person who, alone or jointly with others, determines the purposes and means of the processing of personal data. The crucial factor in determining who is the data controller is who has decided why and how the processing takes place, as well as who exercises influence over which personal data is collected and processed, how long it is stored, and who has access. The assessment of who...

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or who is the data controller for certain processing must always be based on the actual circumstances of the specific case.³

Granit Bostad Beritsholm AB has stated that the company is the data controller for the processing of personal data that occurs through the current video surveillance at Limhamnsvägen 22a in Malmö. IMY believes that this is supported by the investigation and therefore assesses that the company is the data controller for the current personal data processing in the sense referred to in Article 4.7 of the General Data Protection Regulation (GDPR).

3.3 Has the video surveillance had a legal basis under the GDPR?

For the processing of personal data to be lawful, there must be support in at least one of the legal bases specified in Article 6.1 of the GDPR. The company has stated that the current video surveillance is supported by the legal basis specified in Article 6.1 f of the GDPR, which is the so-called balancing of interests. There are three conditions that must all be met for the video surveillance to be carried out with support from Article 6.1 f of the GDPR: The data controller must be able to demonstrate 1) that there is a legitimate interest, 2) that the current processing of personal data is necessary to achieve that interest, and 3) that the legitimate interest (the surveillance interest) outweighs the fundamental rights and freedoms of the data subjects (the privacy interest) in the specific context.⁴

3.3.1 Is there a legitimate interest?

For the interest that the surveillance aims to protect to be considered legitimate, it generally needs to be supported by relevant national law or EU law. A housing cooperative that wants to protect the property, health, and lives of its members can be considered to have such a legitimate interest.⁵ Protecting property, health, and lives can constitute a legitimate interest for video surveillance,

provided that it concerns a real interest and not an interest that is fictitious or speculative at the time of the personal data processing.⁶ This generally means that there must have been crimes or other incidents that create a concrete need for surveillance.

The company has indicated that the purpose of the video surveillance is to increase the safety and security of the tenants, prevent and investigate crimes, and protect the property. The company has also stated that the surveillance is conducted for deterrent purposes. The surveillance complicates attempts at burglary in apartments, attics, and basements because individuals are monitored on their way out with potentially stolen goods. The investigation shows that since 2019, there have been incidents including car break-ins, theft, vandalism, graffiti, burglary, and attempted burglary. IMY assesses that the company has a legitimate interest in conducting video surveillance to increase the safety and security of the tenants, prevent and investigate crimes, and protect property.

3.3.2 Is the video surveillance necessary to achieve the legitimate interest?

For the video surveillance to be deemed necessary, the legitimate interest cannot reasonably be protected in an equally effective manner by other means that are less intrusive.

3 EDPB Guidelines 07/2020 on the concepts of data controller and data processor in the GDPR, version 2.0, adopted on July 7, 2021, 07/2020, point 25.

4 Judgment Rīgas satiksme, C-13/16, EU:C:2017:336, point 28.

5 Judgment TK, C-708/18, EU:C:2019:1064, point 42.

6 EDPB Guidelines 3/2019 on the processing of personal data through video devices, adopted on January 29, 2020, point 20.

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extent infringes on the registered individuals' fundamental freedoms and rights. It should be considered whether the cameras have been used in a manner that limits the intrusion into personal privacy that the surveillance entails without jeopardizing the effectiveness of the surveillance, which includes an assessment of whether, for example, it is sufficient for the camera surveillance to be limited to certain locations or times. The necessity must be assessed together with the principle of data minimization in Article 5.1(c) of the General Data Protection Regulation, which means that personal data collected must be adequate, relevant, and not excessive in relation to the purposes for which they are processed.

The investigation in the case shows that alternative measures have been taken by restricting access to the property using access systems with tags, upgrading to stronger gate automation, installing grilles in front of doors and motion sensors for automatic lighting, as well as improving lighting. At the basement entrance, there is lighting that activates upon motion due to individuals moving close to tenants' balconies during the evening. These measures were implemented by previous owners and have not sufficiently reduced incidents according to the company. The company states that in the areas where cameras are installed, they have had a deterrent effect regarding burglary and fraud attempts. IMY notes that previous property owners have taken alternative and less privacy-sensitive measures to camera surveillance and that the surveillance, according to the company, has had a deterrent effect. IMY assesses that even though the company has not limited the surveillance in terms of time or coverage area, for example, through masking, in order to reduce the intrusion on privacy, the surveillance can be considered necessary to protect the company's and residents' legitimate interests.

3.3.3 Does the interest in surveillance weigh heavier than the interest in privacy at the location?

That the legitimate interest that the surveillance aims to protect (the surveillance interest) should weigh heavier than the registered individuals' fundamental freedoms and rights (the privacy interest) means that the data controller must evaluate the risks of infringement on the registered individual's rights. The decisive criterion is the intensity of the intrusion on the registered individual's rights and freedoms, which can be defined based on the content of the information, the scope, the situation in question, and the registered individual's actual interests. Furthermore, consideration should be given to what type of

personal data processing is involved and how this is specifically carried out. In the balancing between the privacy interest and the surveillance interest, the registered individual's reasonable expectations at the time and in connection with the processing of their personal data should also be taken into account.

Regarding the privacy interest, IMY states the following. All camera surveillance entails an intrusion into the individual's privacy. The European Data Protection Board (EDPB) has stated in guidelines, which are indicative of how the provisions of the General Data Protection Regulation should be interpreted, that registered individuals should not reasonably expect to be subject to surveillance in residential areas. IMY believes that camera surveillance in residential environments is, as a starting point, very sensitive from a privacy perspective. However, the privacy interest varies depending on the specific area of surveillance.

Concerning the surveillance interest, the company has stated that many people move in the area where the property is located, partly because there is a beach nearby that many people visit. The company refers to information in

7 Judgment TK, C-708/18, EU:C:2019:1064, paragraphs 46-48 and 50.

8 EDPB Guidelines 3/2019, paragraph 32.

9 Court of Justice of the European Union ruling in case C-708/18 TK, paragraph 57.

10 Recital 47 of the General Data Protection Regulation and Judgment TK C-708/18 TK, paragraph 58.

11 EDPB Guidelines 3/2019, paragraph 37.

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The latest edition of the Crime Statistics, reported crimes 2023, from the Crime Prevention Council indicates that in urban municipalities such as Malmö, a large number of crimes are reported due to the high turnover of people who are not residents of the municipality, which explains the high crime rate in the area. The company has submitted a compilation of 25 incidents that occurred in the area where the property is located during the period from September 13, 2017, to December 13, 2023. The company has also submitted a compilation of incidents and police reports concerning the years 2019 to 2024, obtained from the police, that have occurred in the area where the property is located and the surrounding area. Furthermore, the company has stated that the police are not permitted to disclose reports and incidents related to the property. IMY believes that the company has demonstrated that crimes and incidents have occurred in the area where the property is located. However, it has not been shown that these crimes and incidents have occurred within the property or in the areas of the property that are monitored. Therefore, IMY does not consider that the material submitted by the company affects IMY's assessment of the surveillance interest in the relevant property where the company conducts camera surveillance.

Entrances and Stairwells

Camera surveillance that takes place inside the entrance or in the stairwell to apartments is generally regarded as particularly sensitive to privacy because residents are monitored when they arrive at and leave their homes. This enables mapping of the residents' habits, visitors, and social circles. The current matter concerns 24/7 camera surveillance of the entrances to all stairwells, including stairwells A, B, and C, as well as a basement entrance to the property near a gym. Within the coverage area of stairwell B, there is also a guest apartment, which means that several different individuals may be subject to the surveillance, thereby increasing the privacy interest somewhat. The privacy interest is somewhat weakened by the fact that the surveillance partially aims to protect the individuals being monitored. In a comprehensive assessment, IMY believes that the privacy interest in entrances and stairwells weighs heavily.

Regarding the surveillance interest, IMY notes the following. The company has provided an account of crimes and incidents that have occurred during the period from May 13, 2019, to December 31, 2023.

The material indicates that burglary alarms have been triggered in stairwells B and C due to unauthorized access, an alarm for suspected unauthorized access in stairwell B, burglary in stairwell B, alarms for unauthorized access in stairwell B, an alarm at scaffolding outside the property, a broken window in the stairwell, and a police intervention in an apartment that resulted in damage to the apartment and stairwell. The company has further stated that unauthorized access to the property occurs three to four times a year through emergency exits that have been damaged as a result, and that vandalism in the form of graffiti has occurred in the stairwells. The company has indicated that there have been issues with the previous owner's property holdings in Malmö regarding unauthorized individuals gaining access, particularly drug addicts, which has caused insecurity for tenants. IMY notes that there have been incidents and crimes in the property, such as issues with unauthorized access, which IMY understands affects the safety of the residents. However, IMY believes that these incidents are not of a sufficiently serious nature for the surveillance interest in entrances and stairwells to be considered to outweigh the privacy interest at the location. In a comprehensive assessment, IMY finds that the surveillance interest in entrances and stairwells weighs relatively lightly.

In light of the incidents that have occurred at the locations, IMY assesses that the surveillance interest at the location weighs relatively lightly. Considering the significant privacy interest at the locations, IMY concludes that the company's interest in camera surveillance of entrances and stairwells does not outweigh the residents' interest in not being monitored there.

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IMY therefore considers that the video surveillance of entrances and stairwells cannot be supported by a balancing of interests according to Article 6.1 f of the General Data Protection Regulation. It has also not been shown that it would be possible to support the surveillance on any other legal basis in Article 6.1 of the General Data Protection Regulation. The company has thus processed personal data in violation of Article 6.1 of the General Data Protection Regulation.

Basements, storage rooms, operations, laundry rooms, waste rooms, and corridors to the locations
Video surveillance of bicycle storage, waste rooms, storage rooms, and similar areas is not considered as sensitive to privacy as video surveillance related to apartments, since residents do not need to pass through these areas to get to and from their homes, nor do they typically spend extended periods of time there. However, IMY notes that the company conducts extensive video surveillance around the clock in the property. Due to this, residents cannot avoid the video surveillance, which indicates a higher risk of privacy intrusion. The risk of privacy intrusion does, however, decrease somewhat regarding the surveillance of the aforementioned areas, particularly during late evening and nighttime hours, when residents are less likely to be present in those locations. The privacy interest is somewhat weakened by the circumstance that the surveillance partially aims to protect the individuals who are subject to the surveillance. IMY assesses that the privacy interest in basements, storage rooms, operations, laundry rooms, waste rooms, and corridors to the locations weighs relatively heavily.

Regarding the interest in surveillance, IMY notes the following. The account of crimes and incidents provided by the company indicates that there have been alarms about suspected unauthorized access to the electrical central, alarms about a door to the waste room being broken open, and alarms about a damaged door to the waste room likely due to an attempted burglary. In addition to these incidents, there has been vandalism in the form of graffiti in the locations. IMY notes that there must be a genuine interest in surveillance, i.e., there should have been actual incidents in the areas being monitored. IMY believes that the company has demonstrated that incidents have occurred in certain monitored areas, but not in all areas. Furthermore, these are mainly not recurring incidents. Overall, IMY assesses that even though some incidents have occurred, the interest in surveillance in these locations weighs relatively lightly.

IMY concludes that the company's interest in video surveillance of basements, storage rooms, operations, laundry rooms, waste rooms, and corridors to the locations does not outweigh the

residents' interest in not being video monitored there.

IMY therefore considers that the video surveillance of basements, storage rooms, operations, laundry rooms, waste rooms, and corridors to the locations cannot be supported by a balancing of interests according to Article 6.1 f of the General Data Protection Regulation. It has also not been shown that it would be possible to support the surveillance on any other legal basis in Article 6.1 of the General Data Protection Regulation. The company has thus processed personal data in violation of Article 6.1 of the General Data Protection Regulation in this regard as well.

Garage

IMY also considers that video surveillance of garages is less sensitive, as individuals do not need to pass through these areas to get to their homes, nor do they typically spend extended periods of time there. This means that the privacy interest weighs somewhat lighter in this location.

Regarding the interest in surveillance, IMY notes the following. The investigation shows that the garage door was hit on one occasion in 2023, a burglary occurred in the garage in 2019 and in 2023 when cars were stolen of steering wheels and headlights. IMY notes that there is property in the garage that is desirable for theft, which differs from other locations in the property,

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for example, basement corridors and laundry rooms. This concerns a different type of location that is monitored and different property that is to be protected than in the rest of the property, which affects the assessment of the monitoring interest that is considered to weigh more heavily in the garage than in other areas of the property.

IMY therefore assesses that the company's interest in monitoring the garage with cameras, even if an incident occurred several years ago, weighs somewhat more heavily than the residents' interest in not being monitored there. The company thus has a legal basis under Article 6.1(f) of the General Data Protection Regulation regarding the monitoring of the garage.

IMY's Summary Assessment

In summary, IMY assesses that the company has a legal basis under Article 6.1(f) of the General Data Protection Regulation for the ongoing camera surveillance in the garage. However, the company lacks a legal basis under Article 6 of the General Data Protection Regulation for its monitoring elsewhere.

3.4 Has the company fulfilled the requirement for information and its obligation to inform?

3.4.1 The Requirement for Information under the Camera Surveillance Act

Section 15 of the Camera Surveillance Act establishes a requirement that information about camera surveillance must be provided through clear signage or in some other effective manner. The provision concerns the actual use of camera surveillance equipment and not the processing of personal data that the surveillance entails.¹² The provision does not contain any requirements regarding what information must be provided, and the obligation to inform can thus be considered fulfilled if the entity conducting the surveillance clearly informs that camera surveillance is taking place at a certain location.

The investigation in the case shows that there are signs on entrance doors, at the gate and door, as well as on the facade. The company has submitted a drawing of the basement level including the garage and a drawing of all stairwells (A, B, and C). The drawings indicate that signs are placed at all entrances to the property.

IMY assesses that the company has provided information about the surveillance through clear signage and thereby fulfilled the information requirement in Section 15 of the Camera Surveillance Act.

3.4.2 The Obligation to Inform under the General Data Protection Regulation

IMY must also assess whether the company has met its obligations to inform about the processing of personal data according to Article 13 of the General Data Protection Regulation. Article 13 of the General Data Protection Regulation regulates what information must be provided when personal data is collected from the data subject. In the case of camera surveillance, personal data is considered to

be collected from the data subject.¹³

¹² Prop. 2017/18:231, New Camera Surveillance Act, p. 87 f.

¹³ Article 29 Working Party, Guidelines on Transparency under Regulation (EU) 2016/679, WP260rev.01, point 26, and EDPB Guidelines 3/2019, point 110. However, see the Administrative Court of Appeal in Stockholm's judgment on January 26, 2023, in case no. 1552-22, in which the court assessed that it is not Article 13 but Article 14 that should apply in the case of camera surveillance. The judgment has been appealed to the Supreme Administrative Court (case no. 870-23) and has therefore not gained legal force. Considering the position that the EDPB's guidelines have under the regulation and pending a legally binding decision, IMY bases its assessment on the EDPB's guidelines and that Article 13 of the General Data Protection Regulation should be applied in this case. The Supreme Administrative Court (HFD) has requested a preliminary ruling from the Court of Justice of the European Union regarding whether Article 13 or 14 is applicable in the case of monitoring with a body-worn camera.

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According to Article 13.1 of the Data Protection Regulation, the data controller, when personal data is obtained, shall provide information to the data subject regarding, among other things, the following:

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The identity and contact details of the data controller.

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Contact details for any data protection officer.

-

The purposes of the processing for which the personal data is intended and the legal basis for the processing.

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If the legal basis is Article 6.1 f (legitimate interests), what legitimate interest the processing aims to serve.

-

The recipients or categories of recipients who will receive the personal data, if applicable.

According to Article 13.2 of the Data Protection Regulation, the data controller shall, at the time of collecting personal data, provide information to the data subject regarding, among other things, the following:

-

The period during which the personal data will be stored or the criteria used to determine this period.

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That there is a right to request access to and rectification or erasure of personal data or restriction of processing concerning the data subject or to object to processing from the data controller.

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That the data subject has the right to lodge a complaint with a supervisory authority.

Article 13.4 states that points 1, 2, and 3 of Article 13 do not apply if and to the extent that the data subject already has the information.

The investigation shows that when the company took over the property in 2022, the signage lacked information regarding, among other things, the purpose of the personal data processing (video surveillance), the identity of the data controller (the company), contact details for the data controller (the company), a notice that those being monitored can exercise their rights under the Data Protection Regulation, how long the footage is stored, and a reference to where one can learn more about the personal data processing.

During the supervision, the signs have been updated, but without the company's involvement.

On the new signs, information about the identity of the data controller (the company) and contact details for the data controller (the company) were missing. IMY notes that the company has stated that the signage will be clarified with information that the company is the data controller for the video surveillance.

The company has stated that information about the processing of personal data occurring during video surveillance has been provided to the data subjects via the company's website, which was updated on June 4, 2024, with complete information. On August 29, 2024, the website was updated with, among other things, additional information about the purpose of the video surveillance and a clarification that the company is the data controller.

The data subjects have previously been referred to the property manager's website for information about the video surveillance. That information has been available since November 1, 2022. The website was revised and the information was updated on November 27, 2023. At that time, information about who the data controller is, contact details for the data controller, information about the purpose of the video surveillance, and the legal basis for the surveillance were missing.

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how long the surveillance material is stored. If the legal basis is Article 6.1 f of the General Data Protection Regulation (balancing of interests), it must also specify which legitimate interest the processing aims to protect. It should also be clear about the recipients or categories of recipients who will have access to the personal data, if applicable. There was also a lack of information that the data subjects have the right to request the deletion of personal data from the data controller (the company) or to object to processing.

The property manager has verbally informed about the camera surveillance during apartment viewings and referred to the company's website for more information. The manager has also informed all new tenants about the camera surveillance and where they can find more information about it. Information about camera surveillance has not been sent out in physical form to the data subjects and has not been provided to the data subjects in any other way.

IMY assesses that there have been deficiencies in the first and second layers of information, but there is not a total lack of information regarding the processing of personal data. IMY notes that even though the property manager has verbally informed about the camera surveillance during apartment viewings and referred to the company's website for more information, others besides the residents are present in the monitored areas, such as guests of the residents, craftsmen, etc. These individuals have thus been referred to the signs about camera surveillance. The signs regarding camera surveillance have been updated during the supervision, as has the website with information about the camera surveillance. Even though the new signs and the website contain more information than before, IMY finds that there are still certain deficiencies in the first layer of information. The camera surveillance signs lack information about the identity of the data controller (the company) and contact details for the company, in the form of an email address or phone number. According to IMY, this information can be added to the existing signs with relatively simple means. IMY assesses that the information provided does not meet all the requirements under Articles 13.1 and 13.2 of the General Data Protection Regulation.

IMY therefore concludes that the company has processed personal data in violation of Article 13 of the General Data Protection Regulation since November 1, 2022.

3.5 Choice of Intervention

IMY has a number of corrective powers in the event of violations of the General Data Protection Regulation, including reprimands, orders, and administrative fines. This follows from Article 58.2 a–j of the General Data Protection Regulation.

IMY shall impose administrative fines in addition to or instead of other corrective measures referred to in Article 58.2 of the General Data Protection Regulation, depending on the circumstances of each

individual case. If it concerns a minor violation, the supervisory authority may, according to Recital 148 of the General Data Protection Regulation, issue a reprimand instead of imposing an administrative fine. Consideration shall be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the violation, as well as previous violations of relevance.

Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is stated in Article 83.1 of the General Data Protection Regulation. Article 83.2 specifies the factors that should be considered.

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considered in determining whether an administrative fine should be imposed and in the assessment of the amount of the fine.

In assessing the amount of the fine, consideration shall be given to Article 83.2 a (the nature, gravity, and duration of the infringement), c (the measures taken by the data controller), and k (any other aggravating or mitigating factors, such as direct or indirect economic benefit).

The EDPB has adopted guidelines on the calculation of administrative fines under the General Data Protection Regulation aimed at creating a harmonized method and principles for calculating fines.¹⁴ According to Article 83.5 of the General Data Protection Regulation, in cases of infringements of Articles 6 and 13 of the General Data Protection Regulation, administrative fines may be imposed of up to 20,000,000 EUR or, in the case of undertakings, up to 4 percent of the total global annual turnover in the preceding financial year, whichever is higher.

In determining the maximum amount of a fine to be imposed on an undertaking, the definition of the term undertaking used by the Court of Justice of the European Union in the application of Articles 101 and 102 of the Treaty on the Functioning of the European Union shall be applied (see Recital 150 of the General Data Protection Regulation). The case law of the Court indicates that this includes any entity engaged in economic activity, regardless of the legal form of the entity and the method of its financing, and even if the entity legally consists of several natural or legal persons.¹⁵

The rules for group liability in EU competition law revolve around the concept of an economic unit. A parent company and a subsidiary are considered part of the same economic unit when the parent company exerts decisive influence over the subsidiary. Decisive influence (i.e., control) can be achieved either through ownership or through agreement. Case law indicates that 100 percent or nearly 100 percent ownership creates a presumption that control is deemed to exist. However, this presumption can be rebutted if the undertaking provides sufficient evidence to demonstrate that the subsidiary operates independently in the market.¹⁶

3.5.1 Fine to be imposed

IMY has found that the company has violated Article 6.1 of the General Data Protection Regulation by conducting surveillance without legal basis on the company's property at Limhamnsvägen 22a in Malmö during the period from November 1, 2022, to December 11, 2024. The company has further processed personal data in violation of Article 13 of the General Data Protection Regulation by failing to meet the requirement to inform the data subjects regarding the surveillance.

IMY notes that the processing of personal data through surveillance of individuals in direct connection with their homes has occurred without legal basis. Against this background, IMY assesses that this is not a case of minor infringements as referred to in Recital 148 of the General Data Protection Regulation. IMY thus finds that a fine cannot be replaced by a reprimand.

The Court of Justice of the European Union has clarified that it is required that the data controller has committed an infringement intentionally or negligently for administrative fines to be imposed.

¹⁴ EDPB Guidelines 04/2022 on the calculation of administrative fines under the GDPR (final adopted on May 24, 2023).

¹⁵ Judgment of the Court of Justice of the European Union Akzo Nobel, C-516/15, EU:C:2017:314, para. 48.

¹⁶ Judgment of the Court of Justice of the European Union Akzo Nobel and Others, C-97/08,

can be imposed according to the General Data Protection Regulation. The Court of Justice of the European Union has stated that data controllers can be subjected to administrative fines for actions if they cannot be considered to have been unaware that the actions constituted a violation, regardless of whether they were aware that they were disregarding the provisions of the General Data Protection Regulation.¹⁷

IMY notes that the company, as the data controller, is responsible for the processing of personal data that occurs within the company and for ensuring that it is conducted in accordance with the General Data Protection Regulation through the principle of accountability in Article 5.2. IMY has assessed that the company has not complied with the General Data Protection Regulation regarding the requirements for legal basis and the information that must be provided to data subjects. In light of the statement from the Court of Justice of the European Union mentioned above and considering previous supervisory decisions from IMY18 and the investigation in the matter, it is evident that the company cannot be considered to have been unaware that the actions could constitute a violation of the General Data Protection Regulation.

Against this background, IMY believes that the company has been negligent in relation to the violations of the General Data Protection Regulation that have been established. There are thus grounds for imposing an administrative fine on the company.

3.5.2 Size of the Administrative Fine

IMY notes that Granit Bostad Beritsholm AB, according to the latest available group structure from December 2022, is a wholly-owned subsidiary within a group with the parent company Granit Bostad AB (559300–4913). The group includes, in addition to Granit Bostad Beritsholm AB, the following companies: Granit Bostad 1 AB (559304–5825), Granit Bostad Bilen AB (556823–6235), Granit Bostad Bredäng AB (556832–5335), Granit Bostad Forsknigen AB (556865–7281), Granit Bostad Sorgenfri AB (556883–2819), Granit Bostad 2 AB (556995–9330), Granit Bostad Annedal AB (556833–4741), Granit Bostad Hjorthagskvarteret AB (556832–5285), Granit Bostad Klippern AB (556833–4782), Granit Bostad Rosendal AB (556917–7164), Granit Bostad 3 AB (556994–5768), Granit Bostad Bryggvägen AB (556833–4733), Granit Bostad Fyrislundsgatan AB (556879–2716), Granit Bostad Kommendörkaptenen AB (556823–6367), Granit Bostad 4 AB (559318–0846), Granit Bostad Duvan 4 AB (559317–1282), Granit Bostad Duvan AB (556807–4214), Granit Bostad Korpen 4 AB (559317–1274), Granit Bostad Korpen AB (556886–3400), Granit Bostad Lissabon AB (559340–8429), Granit Bostad 5 AB (559381–9708), and Granit Bostad Malmö 5 AB (559395–2350).¹⁹ The parent company's ownership is one hundred percent in the subsidiaries, which in turn hold one hundred percent ownership in their subsidiaries.

In light of what has been stated above, a one hundred percent or nearly one hundred percent ownership implies a presumption that control is deemed to exist and that the parent company and subsidiaries should be considered in the calculation.

The company has stated that information about the group structure in which the company is included deviates in the following ways. Granit Bostad 4 Duvan AB has merged into Granit Bostad Duvan AB, Granit Bostad 4 Korpen AB has merged into Granit Bostad Korpen AB, and Granit Bostad Malmö 5 AB has merged into Granit Bostad Beritsholm AB. Two companies have been acquired; Granit Bostad Slottstaden AB and Granit Bostad Villandia AB. The company has further stated that it acquired more properties in 2023, which resulted in net sales for 2023 increasing to 274,053,000 SEK. The company's result had simultaneously

¹⁷ Judgment of the Court of Justice of the European Union in *Nacionalinis visuomenės sveikatos centras*, C-683/21, EU:C:2023:949, paragraph 81, and judgment in *Deutsche Wohnen*, C-807/21, EU:C:2023:950, paragraph 76.

¹⁸ Supervisory decisions DI-2018-14593, BRF Gårdsbjörken, decided on June 15, 2020, supervisory

decision DI-2020-4534, Uppsalahem AB, decided on December 14, 2020, and supervisory decision DI-2021-2172, Bergsporten, decided on April 18, 2024 (the first two decisions were published on the decision date on IMY's website where they are still available, Bergsporten has been appealed to the administrative court and has thus not become legally binding).

19 Group structure, Bisnode Infotorg as of December 10, 2024.

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a significant negative development during the year due to rising interest costs and a depreciation of the property portfolio. The property value decreased by 360,251,000 SEK in 2023, resulting in a negative net result of minus 318,734,000 SEK. Regarding the economic changes that have occurred during the year, IMY makes the following assessment. According to the provision of the data protection regulation regarding the calculation of administrative fines, the calculation shall be based on the total global annual turnover during the previous budget year.²⁰ Therefore, the negative net result for 2023 should not affect the calculation of the fine. IMY thus finds no reason to disregard the provision, and the fine shall be calculated based on the total annual turnover.

IMY assesses that the annual turnover that should be the basis for calculating the administrative fine that Granit Bostad Beritsholm AB can be imposed is all the companies listed above that are part of the group with Granit Bostad AB as the parent company. The annual reports for the financial year 2023 for the company indicate that the total turnover amounts to 274,053,000 SEK. 4% of that amount is 10,962,120 SEK. Since this amount is lower than 20,000,000 EUR, the fine shall be set at an amount between 0 and 20,000,000 EUR.

Regarding the assessment of the severity of the violations, there are initially factors that warrant a more serious view of the violations. The processing of personal data has involved video surveillance of residents in direct connection to their homes and visitors to residents. The video surveillance has been conducted around the clock with a large number of cameras covering significant parts of the property over an extended period. The company has monitored entrances and stairwells in the property, which has meant that residents have been surveilled every time they have moved to and from their homes, and it has not been possible to avoid being under surveillance. The fact that the individuals affected by the surveillance have not received all the information that the company was obligated to provide has further posed a risk that the registered individuals have not been aware of their rights or that they have exercised their rights to a lesser extent than they are entitled to under the data protection regulation. IMY also notes that the company has demonstrated that there has been some issue with break-ins in the garage and has had a legitimate interest and taken other measures to address this, which means that there have not been intentional violations. IMY also notes that the surveillance has been limited to residents and visitors. The company has updated signs regarding video surveillance and their website with information about video surveillance with more information than before and has thus attempted to take corrective action to fulfill the information obligation.

Based on the above circumstances, IMY assesses that the violations collectively represent a low degree of severity. The starting point for calculating the fine should therefore be set low in relation to the applicable maximum amount. In addition to the assessment of the severity of the violations, IMY will assess whether there are any aggravating or mitigating circumstances that may affect the size of the fine. IMY assesses that there are no additional aggravating or mitigating circumstances, beyond those considered in the assessment of severity above, that affect the size of the fine.

In light of the nature and seriousness of the violations, IMY determines that the administrative fine for Granit Bostad Beritsholm AB can remain at 200,000 SEK. IMY assesses that this amount is effective, proportionate, and deterrent in the current case.

3.5.3 Order

According to Article 58.2 d, the supervisory authority has the power to order a data controller to ensure that processing is carried out in accordance with the provisions of the data protection regulation and, if necessary, in a specific manner and within a specific period.

Since the surveillance, as far as can be seen from the investigation, is still ongoing, it is important that the company ceases the surveillance that is not permitted. There are therefore grounds to order the company, pursuant to Article 58.2 d of the data protection regulation, to cease video surveillance of all locations in the property, except for the garage. According to IMY, it is also important that the company takes measures to ensure that the registered individuals receive correct and complete information regarding the personal data processing through video surveillance that occurs. IMY decides, based on Article 58.2 d of the data protection regulation, that the company shall be ordered to, no later than four weeks after this decision has become final, take measures to ensure that

1. the company ceases video surveillance of all locations in the property except for the garage,
2. the video surveillance signs contain information about the company's identity and contact details, in the form of an email address or phone number.

The requirement for action to be taken no later than four weeks after this decision has become final means that if the decision is not appealed, action must be taken no later than four weeks after the appeal period has expired.

This decision has been made by the unit manager Jenny Bård after presentation by the lawyer Khadija Faras.

Jenny Bård

Attachments

1. Complainant's personal data
2. Information on payment of the fine
3. Information on video surveillance in multi-family houses

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4. How to Appeal

If you wish to appeal the decision, you must write to IMY. In your letter, specify which decision you are appealing and the change you are requesting. The appeal must be received by IMY no later than three weeks from the day you were informed of the decision. However, if you are a party representing the public interest, the appeal must be submitted within three weeks from the day the decision was announced. If the appeal is submitted on time, IMY will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to IMY if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.